



United States
Attorney's Office
District of Minnesota



First Defendant Charged in Autism Fraud Scheme

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For Immediate Release

U.S. Attorney's Office, District of Minnesota

Hassan Defrauded Autism Program of \$14M, Carried Out Feeding Our Future Fraud, Bought Real Estate in Kenya with Taxpayer Money

MINNEAPOLIS – Asha Farhan Hassan, age 28, was charged today by federal information with wire fraud for her role in a \$14 million autism fraud scheme. Hassan was also charged with participating in the Feeding Our Future fraud scheme, for which she received \$465,000.

"Today's charges mark the first in the ongoing investigation into fraud in the EIDBI Autism Program," said Acting U.S. Attorney Joseph H. Thompson. "To be clear, this is not an isolated scheme. From Feeding Our Future to Housing Stabilization Services and now Autism Services, these massive fraud schemes form a web that has stolen billions of dollars in taxpayer money. Each case we bring exposes another strand of this network. The challenge is immense, but our work continues."

The EIDBI Autism Fraud Scheme

As set forth in the information, Hassan and others devised and carried out a scheme to defraud the Early Intensive Developmental and Behavioral Intervention ("EIDBI") benefit, a publicly funded Minnesota Health Care Program that offers medically necessary services to people under the age of 21 with autism spectrum disorder ("ASD"). According to the Minnesota Department of Human Services ("DHS") website, the purpose of the EIDBI program is "to provide medically necessary, early and intensive intervention for people with ASD and related conditions."

Applied Behavior Analysis, sometimes called "ABA therapy," is a type of one-on-one behavioral therapy designed to help children on the autism spectrum develop social and emotional skills. ABA therapy seeks to improve social skills by rewarding and reinforcing positive behavior while discouraging negative behavior. The EIDBI benefit covers various treatment options for persons diagnosed with ASD and related conditions, including ABA therapy. EIDBI treatment services must be delivered under the supervision of a Qualified Supervising Professional (or "QSP") that is employed by the EIDBI provider.

In order to qualify for the EIDBI benefit, a person must be under 21 years old; be diagnosed with ASD or a related condition; have had a comprehensive multi-disciplinary evaluation (CMDE) that establishes their medical need for EIDBI services; and be enrolled in a qualifying healthcare program, such as Medicaid. The CMDE is used to develop the person's individual treatment plan (ITP). An ITP is a personalized, written plan of care that outlines the goals for the person and sets forth the specific interventions the person will receive based on their individual, assessed needs.

From November 2019 through December 2024, Asha Hassan and others devised and carried out a scheme to defraud the EIDBI autism services program. Hassan formed and registered Smart Therapy LLC with the Minnesota Secretary of State in November 2019. Hassan listed herself as the sole owner of Smart Therapy. In reality, other individuals also had ownership stakes in Smart Therapy but were not listed on DHS documents, including because one of the owners previously owned an adult daycare and was excluded by DHS for three years due to her conduct running the adult daycare center. Shortly after forming the company, Hassan enrolled Smart Therapy as a provider agency in the EIDBI program. As discussed below, Hassan also enrolled Smart Therapy in the Federal Child Nutrition Program under the sponsorship of Feeding Our Future.

Smart Therapy purported to be providing necessary one-on-one ABA therapy to children with autism. In fact, Smart Therapy employed unqualified individuals as "behavioral technicians." These behavioral technicians were often 18- or 19-year-old relatives with no formal education beyond high school and no training or certifications related to the treatment of autism.

To run their fraud scheme, Hassan and her partners needed children who had an autism diagnosis and an individual treatment plan. Hassan and her partners approached parents in the Somali community to recruit their children into Smart Therapy. Where a child did not have an autism diagnosis and an individual treatment plan, HASSAN and her partners worked with a QSP to get the recruited child qualified for autism services. There was no child that Smart Therapy was not able to get qualified for autism services.

As a recruitment tactic to drive up enrollment, Hassan and her partners paid monthly cash kickback payments to the parents of children who enrolled their children in Smart Therapy to receive autism services. These kickback payments ranged from approximately \$300 to \$1,500 per month, per child. The amount of these payments was contingent on the services DHS authorized a child to receive—the higher the authorization amount, the higher the kickback. Often, parents threatened to leave Smart Therapy and take their children to other autism centers if they did not get paid higher kickbacks. Several larger families left Smart Therapy after being offered larger kickbacks by other autism centers. Hassan and her partners covered the cost of the kickback payments that Smart Therapy paid to parents through the fraudulent billings to Medicaid.

Hassan and her partners submitted millions of dollars' worth of claims for Medicaid reimbursement on behalf of Smart Therapy. Many of these claims were fraudulently inflated, were billed without providers' knowledge, and were for services that were not actually provided. Hassan submitted claims seeking reimbursement for the maximum number of hours permitted by Medicaid for a given treatment or service given to a particular client, when the client only received a fraction of those treatment hours, if

any treatment was provided at all on that day. These claims were then repeated for numerous other providers. Hassan submitted claims for reimbursement to Medicaid that included fraudulent signatures or approvals from the required medical providers or supervising QSPs. In reality, the providers and QSPs either did not work for Smart Therapy, were out of the country on the day the services were provided or had not participated in or signed off on the services listed in the claims.

Most of the children were dropped off in the morning and picked up in the evening by drivers, who billed DHS for transportation services. It was a part of the fraud scheme that some of these transportation providers were also on the payroll of Smart Therapy.

Hassan's fraudulent scheme resulted in Smart Therapy obtaining more than \$14 million in EIDBI reimbursement funds from Minnesota DHS and UCare. Hassan split the proceeds of the fraud schemes with her partners. Hassan sent hundreds of thousands of dollars in fraud proceeds abroad, some of which she used to purchase real estate in Kenya.

The Federal Child Nutrition Program and Feeding Our Future Fraud Scheme

As set forth in the information, Hassan and others devised and carried out a scheme to defraud the Summer Food Service Program and Child and Adult Care Food Program (together, the "Federal Child Nutrition Program"), a program designed to provide meals to hungry children. MDE administers the Federal Child Nutrition Program in Minnesota.

Beginning in April 2020, Aimee Bock, the founder and executive director of Feeding Our Future, oversaw a massive scheme to defraud the Federal Child Nutrition Program carried out by sites under the sponsorship of Feeding Our Future. Bock and Feeding Our Future sponsored entities that submitted fraudulent reimbursement claims and fake documentation while purporting to serve hundreds and, in many instances, thousands of children per day. Bock and her company sponsored the opening of nearly 200 Federal Child Nutrition Program sites despite knowing that the sites intended to and did submit fraudulent claims.

While using Smart Therapy to defraud the EIDBI autism program, Hassan also used Smart Therapy to engage in the Feeding Our Future fraud scheme to defraud the Federal Child Nutrition Program. Hassan enrolled Smart Therapy in the Federal Child Nutrition Program under the sponsorship of Feeding Our Future in July 2020.

Shortly after enrolling in the program, Hassan began submitting fraudulent claims to Feeding Our Future. Hassan fraudulently claimed that Smart Therapy was serving breakfast and lunch to exactly 300 children a day, 7 days per week. Hassan prepared and submitted fraudulent meal counts, attendance rosters, and invoices in support of the fraudulent claims. Hassan submitted fraudulent invoices purporting to show that a food vendor company called S & S Catering provided meals to be served at the Smart Therapy site. By April 2021, Hassan claimed to be serving approximately 1,200 meals per day to children, 7 days per week, at Smart Therapy.

Between 2020 and 2021, Hassan claimed to have served nearly 200,000 meals to children at the Smart Therapy site, for which she claimed to be entitled to approximately \$465,000 in Federal Child Nutrition

Program funds.

“Abusing publicly funded health care programs for personal profit is an act of duplicity, greed, and a betrayal of the most vulnerable in our community,” said Special Agent in Charge Alvin M. Winston Sr. of FBI Minneapolis. “The alleged fraud by Hassan resulted in the theft of millions of dollars intended to serve and support children in need. The FBI and our partners will not stop pursuing those who unscrupulously exploit government programs. We will secure justice for the taxpayers of Minnesota.”

This case is the result of an investigation conducted by the Federal Bureau of Investigation, Health and Human Services – Office of Inspector General, the Internal Revenue Service – Criminal Investigation, and the United States Postal Inspection Service.

Acting U.S. Attorney Joseph H. Thompson and Assistant U.S. Attorneys Rebecca E. Kline, Harry M. Jacobs, and Daniel W. Bobier are prosecuting the case.

An information is merely an allegation, and the defendant is presumed innocent until proven guilty beyond a reasonable doubt in a court of law.

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